

Memo.No.1483/SC.D/76-1, Genl.Admn. (SC.D) Dept., dt.14.07.1976 regarding issue of sanction of prosecution in cases investigated by A.C.B., within two months.

Subject Heading : Sanction of prosecution - to issue within 45 days

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Ref : From the Government of India, Cabinet Secretariat, Department of Personnel and Administrative Reforms, New Delhi, Lr. No.126/26/75AVD-I, dt.14.06.76.

The Government of India, Cabinet Secretariat, Department of Personnel & Administrative Reforms, New Delhi, in their letter cited, have stated that on the question of delay in the issue of sanction for prosecution of public servants in cases investigated by the State Anti-Corruption Bureau which came up for discussion at the Joint Conference of Central Bureau of Investigation and State Anti-Corruption Bureau Officers held in July, 1975, the Conference recommended that there should be administrative instructions to the effect that the sanction should be given or refused within a period of two months, as otherwise there is avoidable delay in putting the case in Court, and consequent injury to its proper presentation. The Government of India have accordingly requested the State Governments to consider the question of issuing necessary administrative instructions in the matter as recommended by the Joint Conference of Central Bureau of Investigation and State Anti-Corruption Officers.

2. After careful consideration of the above question, the Government accept the suggestion of the Government of India, and accordingly, direct that the Department of Secretariat / Heads of Departments and concerned competent authorities should take necessary steps to see that sanction for prosecution is issued or refused, as the case may be, within a period of two months from the date of receipt of the advise of the Vigilance Commission on the final report of the Director, Anti-Corruption Bureau.

3. The Director, Anti-Corruption Bureau, should see that the final reports in all cases in which criminal prosecution were to be sanctioned, are sent within two months from the date of registration. He should also ensure that along with the final report, part 'B' reports, the draft sanction order as also the connected records viz., statements of witnesses, Case Diary File and all other records are invariably sent to the Vigilance Commission who would pass them to the competent authority along with its advice.